

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 25-01

20230930-DK-BUTTERFLY-1, INC. v. BAL CONTAINER LINE CO., LIMITED

RESPONDENT’S EMERGENCY UNOPPOSED MOTION TO EXTEND DEADLINES

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Respondent BAL Container Line Co., Limited (“BAL”) by its undersigned counsel, hereby submits this Motion to Extend Deadlines (“Motion”), respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer’s Revised Scheduling Order, as detailed herein, by 30 days.¹ The heart of this request stems from BAL’s need for additional time to collect, review and produce responsive emails to Complainant in this case, and Judge Wirth has set this Friday, August 15, 2025 as the deadline for full compliance with her Order of July 16, 2025. This litigation is the first time that BAL has been forced to hire a vendor to collect responsive litigation-related emails, and counsel for the Parties to this litigation also need time to prepare an appropriate ESI protocol and plan for email collection/production. Respondent BAL has styled this motion as one presenting an “emergency” because it does not want to run afoul of Judge Wirth’s July 16, 2025 Order and requires relief from the August 15, 2025 deadline therein. Complainant’s counsel indicated that Complainant does not oppose this request.

¹ Some of the proposed deadlines are moved by more than 30 days, due to the new date falling on a weekend.

I. THE CURRENT SCHEDULE

On July 16, 2025, the Presiding Officer entered the Revised Scheduling Order, which includes deadlines affecting this Motion as follows:

August 15, 2025	Respondent provides documents identified in Order on Complainant's Motion to Compel.
September 15, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admissions, and RFPs.
September 30, 2025	Disclosure of initial expert reports, if any.
October 30, 2025	Disclosure of rebuttal expert reports, if any.
November 14, 2025	Complete expert depositions. Close of all discovery.
December 5, 2025	Complainant's initial brief, proposed findings of fact, and appendix.
January 5, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.
January 20, 2026	Complainant's reply brief and responses to Respondent's proposed findings of fact.

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

1. Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein.

2. On July 16, 2025, the Presiding Officer granted in part and denied in part the motion to compel production of documents and interrogatory responses filed by Complainant

20230930-DK-Butterfly-1, Inc. (“BBBY”). The Presiding Officer set August 15, 2025 as the deadline for BAL’s response.

3. Since the Presiding Officer’s Order, BAL has engaged in diligent efforts to provide the discovery requested by BBBY. BAL has searched for documents responsive to BBBY’s requests and is planning to provide a production by the original August 15, 2025 deadline. For example, BAL will be producing all bills of lading it could locate after a reasonable search that relate to the containers at issue in this case, all meeting minutes it could locate after a reasonable search that relate to the matters at issue in this case, and all screenshots of its booking system showing the containers at issue in this case that it could locate after a reasonable search. BAL will also provide amended interrogatory responses by the August 15, 2025 deadline.

4. BAL respectfully requests additional time to provide the remainder of the discovery requested by BBBY, particularly with respect to BBBY’s requests for email discovery. This litigation is the first time that BAL has been required to hire a vendor to conduct email discovery. **Because Bal takes this case seriously, counsel for BAL traveled from California to Shanghai on July 28, 2025 and spent multiple days working with BAL to ensure compliance with the Order of July 16, 2025.** BAL is prepared to share the names of the email custodians with BBBY by the original August 15, 2025 deadline, but will require additional time to meet and confer with counsel for BBBY regarding search terms and an ESI search protocol, and then further time to collect, review, and produce responsive emails.

5. The Parties have not yet agreed upon an ESI search protocol. This protocol will govern the collection, review, and production of documents and ESI in response to BBBY’s requests. BAL anticipates that the ESI search protocol will include nine custodians (and ten accounts) covering the period between January 1, 2021 through December 31, 2022. Because of

the number of custodians , BAL anticipates a large volume of documents and emails may need to be reviewed for relevance, attorney-client privilege, and confidentiality prior to production to BBY. Further, even after the Parties agree to an ESI search protocol, depending on the number of hits from each custodian's account, the Parties may need to confer about narrowing the protocol and BAL may need to engage in further searches.

6. BAL further anticipates that completion and review of the ESI search protocol will interfere with the Parties' ability to complete fact witness depositions by the current September 15, 2025 deadline. BAL believes that a 30-day extension will allow time to complete the ESI search protocol, review BAL's production of responsive documents, and take depositions of all fact witnesses under the proposed revised schedule below.

7. BAL will endeavor to prevent any further requests for additional time, but limited extensions may become necessary if, for example, issues related to collection and production of documents from the BAL custodians' email accounts arise. BAL will work to limit such extension requests to the extent possible.

8. Pursuant to 46 C.F.R. Section 502.71, counsel for BBY and BAL have discussed this Motion with each other in a good faith effort to determine whether there is any opposition to the relief sought. BBY indicated that it is not opposed to this Motion. BAL requests the following amended schedule:

September 15, 2025	Respondent provides documents identified in Order on Complainant's Motion to Compel
October 15, 2025	Complete depositions of fact witnesses. Last day to serve interrogatories, requests for admission, and RFPs.
October 30, 2025	Disclosure of initial expert reports, if any.
December 1, 2025	Disclosure of rebuttal expert reports, if any.

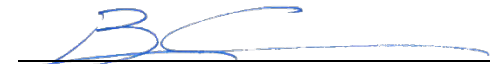
December 15, 2025	Complete expert depositions. Close of all discovery.
January 6, 2026	Complainant's initial brief, proposed findings of fact, and appendix.
February 4, 2026	Respondent's opposition brief, proposed finding of fact, and appendix.
February 19, 2026	Complainant's reply brief and responses to Respondent's proposed findings of fact.

6. WHEREFORE, BAL prays that its Emergency Unopposed Motion to Extend Deadlines be granted.

Dated: August 12, 2025

Respectfully submitted,

THEODORA ORINGHER



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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 12th day of August, 2025, a true and correct copy of the foregoing **RESPONDENT’S EMERGENCY UNOPPOSED MOTION TO EXTEND DEADLINES** was served via electronic mail on:

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